

TENTATIVE RULING

Case: **LeCount v. Universal Limousine and Transportation**
Case No. CV2022-1429

Hearing Date: **July 22, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff Greg LeCount's motion to tax costs is **GRANTED IN PART**, as follows:

1. The motion to tax expert fees (\$25,450.00) is **DENIED**. Defendant Universal Limousine and Transportation has shown that the expert witness fees were reasonably incurred following the expiration of both defendant's 998 offers and were "actually incurred and reasonably necessary in either, or both, preparation for trial...or during trial." (Code Civ. Proc., § 998, subd. (c)(1); Code Civ. Proc., § 1033.5, subd. (a)(16); Angel Decl., ¶¶ 7, 17, 21-29, Exhs. D-G.)
2. The motion to tax models, enlargements, and photocopies of exhibits (\$898.86) is **GRANTED**. These are discretionary costs. (Code Civ. Proc., § 1033.5, subd. (c)(4); *Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 667-668.) Photocopying charges, except for exhibits, are not allowable as costs. (Code Civ. Proc., § 1033.5, subd. (b)(3).) Defendant fails to explain how copies of plaintiff's deposition, plaintiff's discovery responses, and plaintiff's medical records regarding the facts of the accident were being made for preparing demonstratives or being used for trial exhibits. Thus, the Court cannot determine whether defendant is seeking allowable costs and if those costs were reasonable and necessary to the litigation. (*Segal, supra*, 12 Cal.5th at pp. 667; see Code Civ. Proc., § 1033.5, subd. (c); Angel Decl., ¶ 32, Exh. I.)
3. The motion to tax electronic filing fees (\$687.69) is **GRANTED IN PART**. Plaintiff identifies an arithmetic error in calculation of the total amount of individual line items listed on defendant's memorandum of costs worksheet. (Memo. Pts. & Auths., p. 6 ["the individual line items listed in the worksheet total \$683.69, not \$687.69"].) Defendant does not oppose correction of the arithmetic calculation. (Opp., p. 9.) Accordingly, the Court adjusts the amount of requested electronic filing fees to \$683.69. These are allowable costs, and plaintiff fails to demonstrate that the costs incurred were not reasonable and necessary to the conduct of the litigation. (Code Civ. Proc., § 1033.5, subd. (a)(14); Angel Decl., ¶¶ 33, 36, Exh. K.)
4. The motion to tax Ontellus record subpoena charges (\$17,307.69.) is **DENIED**. As an initial matter, plaintiff's request to file a supplemental declaration from his counsel is denied. (Reply, p. 3.) These are allowable costs, and plaintiff fails to demonstrate that the costs incurred were not reasonable and necessary to the conduct of the litigation. (Code Civ. Proc., § 1033.5, subd. (c); *Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 577-578; Angel Decl., ¶2, Exh. L.)

Therefore, the Court taxes defendant's total costs in the amount of **\$902.86** and awards defendant costs in the amount of **\$50,296.80**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Phoenix v. Skydance Skydiving**
 Case No. CV2024-1835

Hearing Date: **July 22, 2026** **Department Thirteen** **9:00 a.m.**

Motion for summary judgment and/or summary adjudication (Oakley Phoenix)

On the Court’s own motion, defendants Prestar, Inc. and Chris Peterson’s (collectively, “Skydance defendants”) motion for summary judgment and/or summary adjudication to claims brought by Oakley Phoenix is **CONTINUED** to **September 23, 2026**, at 9:00 a.m. in Department Thirteen.

Motion for summary judgment and/or summary adjudication (Jae Phoenix)

On the Court’s own motion, Skydance defendants’ motion for summary judgment and/or summary adjudication to claims brought by Jae Phoenix is **CONTINUED** to **September 23, 2026**, at 9:00 a.m. in Department Thirteen.

Plaintiff Jae Phoenix (“Jae”) filed an untimely opposition. (Code Civ. Proc., § 437c, subd. (b)(2) [all papers opposing a motion for summary judgment must be filed with the court and a copy served on each party no less than twenty days before the hearing].) Despite being untimely, the Court will consider Jae’s opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

By **September 11, 2026**, Skydance defendants may file a new reply to Jae’s opposition.

No other documents will be considered.